

25STCV31552 25STCV31552

County: los-angeles

Division: Civil Law and Motion

Department: 735

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Case Number: 25STCV31552 Hearing Date: August 26, 2026 Dept: 735

Alesio v. Estate of Ulrich F. Keppler,

et al.

Defendant's Motion to Compel Compliance with Subpoena for

Production of Personal Records from Peter J. Weingold, M.D. and Sanctions

against Plaintiff

DISCUSSION

The

motion is denied for failure to give proper notice to the third-party deponent.

For a nonparty subpoena to be effective, a deposition subpoena must be

personally served. (Code Civ. Proc., § 2020.220(b).) Personal service is a

condition both for enforcement of the subpoena and for attendance at any court

session purporting to enforce the subpoena. (Id., subd. (c).) The Rules

of Court require that “[a] written notice and all moving papers supporting a

motion to compel an answer to a deposition question or to compel production of

a document or tangible thing from a nonparty deponent ... be personally served on the nonparty deponent unless the nonparty deponent agrees to accept service by mail or electronic service at an address or electronic service address specified on the deposition record." (Cal. Rules of Court, rule 3.1346.)

It

is undisputed that the deponent is not a party to this action. Defendant's exhibits do not establish the subpoena was personally served. (See Aldover Decl. Exh. A, p. 4 [blank proof of service].). The proof of service for Defendant's motion indicates the deponent was served by U.S. Mail.

CONCLUSION

The

court denies Defendant's motion to compel and for sanctions.

Defendant

to give notice.